CIRCLE-ZS20K Research Use Licence

Version **20261110**

Provided by Zhongshan Hospital, Fudan University, Shanghai, China

This CIRCLE-ZS20K Research Use Licence (the **Licence**) governs access to and use of the CIRCLE-ZS20K dataset made available by Zhongshan Hospital, Fudan University, Shanghai, China.

Please review this **Licence** before requesting access to or using CIRCLE-ZS20K (the **Dataset**). By doing so, you confirm that you have read and agree to comply with its terms. If you are unable to agree to these terms, please refrain from requesting access to or using the Dataset.

1. Definitions

1) **Provider** means Zhongshan Hospital, Fudan University, Shanghai, China, acting through its authorised dataset maintainers.
2) **Dataset** means the CIRCLE-ZS20K files, images, reports, labels, manifests, documentation and related material distributed through the Provider's Hugging Face repository and any other related repository or platform, together with all copies, extracts, derivatives and metadata supplied under this Licence or the DUA.
3) **User or PI** means the named principal investigator who applies in an institutional research capacity and whose personal Hugging Face account is approved for access. The PI and their affiliated institution shall be jointly responsible for the Approved Project and the authorised handling of the Dataset, including all access application, on-site data access, and Dataset processing activities conducted by any Authorised Personnel.
4) **Data-Use Agreement** or DUA means the complete agreement containing the full text of this Licence and a final acceptance and signature page. The PI must read all pages, complete the final acceptance page, and return the fully executed DUA (which incorporates the Licence text). The Provider's recorded acceptance (following final review and approval) is required before Hugging Face file access is approved. A detached signature page or an incomplete DUA is not sufficient.
5) **Authorised Personnel** means individuals other than the PI who: (a) are named in the access request and listed in the DUA, in the part of the DUA form provided for that purpose; (b) are themselves engaged in academic research at the Approved Institution; and (c) work on the Approved Project under the PI's direct supervision. A person becomes Authorised Personnel when the Provider accepts a DUA that lists that person; no separate approval by the Provider is required. Authorised Personnel are bound by this Licence and by the DUA as if they were the User. The PI remains fully responsible for their acts and omissions. The PI must notify the Provider in writing of any addition to or removal from that list and must maintain an up-to-date list, providing it to the Provider on request; where the Provider so requires, the change must be recorded in an updated DUA page or a written schedule. The Provider may at any time direct that an individual cease to be Authorised Personnel.
6) **Approved Project** means the non-commercial academic research project described in the User's access request and accepted by the Provider for review and approval.
7) **Approved Institution** means the eligible academic or research institution with which the PI is formally affiliated and which is identified in the access request.

8) **Technical Environment** means the access-controlled systems, physical location, network and storage described in the access request and accepted by the Provider.
9) **Derived Model** means any model, checkpoint, weight set, adapter, embedding, index, parameter set or other artefact trained or fine-tuned on the Dataset, or otherwise produced using patient-level Dataset content in a manner that changes the artefact's parameters. A pre-existing model whose parameters are unchanged by an evaluation carried out on the Dataset is not itself a Derived Model, but the Dataset used for that evaluation, and any outputs containing patient-level Dataset content, remain subject to this Licence.
10) **Aggregate Statistics** means numerical or descriptive results computed across multiple records where no individual record, image or report can be reconstructed, and no individual can be identified, whether alone or in combination with other reasonably available information.
11) **De-identified** means that direct identifiers have been removed or transformed, but that the information remains capable, in principle, of being associated with an individual. De-identified information is not Anonymised Information.
12) **Anonymised Information** means information that cannot be used to identify a specific natural person and that cannot be restored to an identifiable state.
13) **Security Incident** means any loss, theft, unauthorised access to, unauthorised disclosure of, alteration of, or loss of control over the Dataset, or any compromise of credentials or access tokens, whether accidental or deliberate.
14) **Material Change** means any change to the purpose, design, data sources, methods, partners, funding, processing location, security environment or intended output of the Approved Project that a reasonable reviewer would consider relevant to the assessment on which access was granted, and in any event includes any change of a kind that the User is required to notify under Section 3 (j).
15) **Commercial Use** means use primarily intended for commercial advantage, monetary compensation, product or service development, internal commercial research, paid consulting, regulatory submission for a commercial product, or provision of a commercial service. Publication by an academic or non-profit institution and cost-recovery research funding do not by themselves constitute Commercial Use, provided that the Dataset is not used for the commercial purposes listed above. Industry funding of an academic project must be disclosed in the access request and does not by itself constitute Commercial Use; any subsequent development, licensing or transfer of a product or service based on the Dataset requires the Provider's separate written licence.
16) **Project Period** means the period from the approved start date through the approved end date recorded on the signed acceptance page or in a valid amendment, inclusive, with all dates and times determined by Beijing Time (UTC+8). The expressions "research period of the Approved Project" in Section 2 and "Approved Project Period" on the acceptance page refer to the Project Period.

2. Limited permission

1) For non-commercial academic usage only. Subject to this Licence and the completed DUA, the Provider grants the User a limited, revocable, non-exclusive, non-transferable and non-sublicensable permission to access and use the Dataset solely for the Approved Project, only during the research period of the Approved Project, and solely for bona fide non-commercial academic research.

2) This permission extends to Authorised Personnel acting within the Approved Project and within the Technical Environment. It does not extend to any other person, and it does not permit the User to grant access to any other person.
3) No ownership, data property rights, copyright, data intellectual property rights or other intellectual-property interest in the Dataset is transferred. All rights not expressly granted in the Licence are reserved by the Provider and applicable rights holders. Without limiting this, the Provider reserves all rights in the selection, coordination and arrangement of the Dataset, in the name CIRCLE-ZS20K, and in any database right or equivalent right under applicable law. The User must not use CIRCLE-ZS20K, or any name or mark confusingly similar to it, as or in the name of a product, service, model or commercial offering without the Provider's prior written consent.
4) The parties acknowledge that this Licence governs access to and use of the Dataset only. It does not transfer any right in the underlying clinical data, and it does not affect any right that a data subject or a competent authority may have under applicable law.

3. Individual access and authorised environment

1) Access is available only to an individual who is formally affiliated with an eligible academic or research institution and who uses the Dataset in an official research capacity. An eligible institution includes an accredited higher education institution, a recognised research institute, a teaching hospital, or another non-commercial research organisation approved by the Provider.
2) Access is not granted to unaffiliated individuals, institutions or laboratories as collective entities, shared accounts, or persons acting solely in a private capacity outside an eligible institutional research role. Each applicant must be the project's responsible PI and use their own identifiable Hugging Face account. The account's primary email must be the PI's own current institutional email, verified by Hugging Face. The Provider cross-checks that address against the PI's pre-contact email and signed DUA; a self-entered form address alone is not verification. A verifiable institutional email is evidence of affiliation and an accountable point of contact; it does not by itself represent institutional approval of the project. Institutional affiliation alone does not confer access.

   The User must:

   a) provide accurate, complete and current information in the access request;
   b) identify the User's institution, department or laboratory, institutional status, research role and official position or title;
   c) maintain a current and verifiable affiliation with the Approved Institution throughout the access period;
   d) personally use the same institutional email for pre-contact, the Hugging Face account's verified primary email, the DUA, submission of the complete signed DUA and all subsequent project correspondence; assistants, shared mailboxes and personal email addresses may not substitute for the PI. A necessary change requires identity re-verification and the Provider's written acceptance before continued access;
   e) confirm that the User is authorised by the Approved Institution to conduct the Approved Project and to use the institution's facilities and Technical Environment for that purpose;
   f) keep all account credentials and access tokens confidential;

g) ensure that no student, colleague, contractor, external service provider or collaborator who is not Authorised Personnel can access the Dataset, and that Authorised Personnel access it only within the Technical Environment and only for the Approved Project;

h) access, store and use the Dataset only within the Approved Institution and the Technical Environment described in the access request;

i) complete the DUA required by the Provider, including any institutional confirmation or countersignature requested by the Provider, before access is granted; and

3) Obtain the Provider's prior approval before any Material Change, before adding any Authorised Personnel, and before using any new processing location, cloud or compute service not recorded in the access request; promptly notify the Provider of any change to the User's institutional affiliation, department or laboratory, position or role, principal investigator or supervisor, and withdraw access immediately where a person leaves the Approved Project.

4) A User who leaves the Approved Institution, loses the stated institutional status or appointment, or ceases to participate in the Approved Project must stop accessing and using the Dataset and notify the Provider. Continued use from another institution requires a new access request and approval.

5) Approval is attached to the named PI, institutional email, Hugging Face account and Approved Project. It is not a group or shared-account authorisation. Other people must not use the PI's credentials or obtain direct access unless separately authorised by the Provider under applicable written terms. Submission of an email, access query form, Hugging Face request or signed DUA alone does not grant access.

6) The PI must ensure that each individual who is Authorised Personnel has read this Licence and is bound by written obligations no less protective than this Licence, which may be satisfied by that individual's institutional employment or research agreement. The PI must maintain an up-to-date list of Authorised Personnel, providing it to the Provider on request. The PI must notify the Provider in writing of any addition to or removal from that list; where the Provider so requires, the change must be recorded in an updated DUA page or a written schedule. The Provider may at any time direct that an individual cease to be Authorised Personnel.

4. PI-led pre-contact and review

Before submitting the Hugging Face access request, the PI must personally email circle_collaborators@zs-hospital.sh.cn from the same institutional email used as the account's verified primary email. The email must include the completed PI access query form workbook linked on the public github website, with its declaration accepted. Required information includes the PI's name, public profile, institution, role, institutional email, Hugging Face username, project title, project start and expected end date, intended academic use, a purpose summary of no more than 100 words, processing location and safeguards (Measures to ensure that personal information processing activities meet the personal information protection standards stipulated under the Personal Information Protection Law of the People’s Republic of China), scope clarification where needed, and dated PI confirmation.

4.1 Review timetable

We normally provide the preliminary result within 15 working days after complete pre-contact material is received. During backlog, this stage may take up to 45 working days. Applicants who pass receive an application reference and the DUA and may then submit the Hugging Face access request. The PI must complete the

DUA's institution and project fields, sign the final acceptance page, and return all pages of the DUA (which incorporates the Licence text) from the same institutional email; page-by-page initials are not required.

Where the Provider requests additional information or a corrected document, the PI must respond within 20 working days. If the PI does not respond within that period, the application is treated as withdrawn and the PI may reapply. Time awaiting missing or corrected applicant material or signatures is excluded from the review period.

The final review period begins only after both a complete signed DUA and a matching pending Hugging Face request have been received. We normally complete that review within 15 working days, or up to 45 working days during backlog, and approve eligible accounts after acceptance. Each stage has its own 45-working-day maximum. Working days follow the Provider's institutional working calendar in Shanghai, China. For an overdue response, contact zeng.mengsu@zs-hospital.sh.cn with the original thread and application reference. Preliminary approval, submission or expiry of a review period does not itself authorise access.

4.2 Refusal, reasons and appeal

Where the Provider refuses an application, it will give reasons to the extent it is able to do so without disclosing confidential information or information the disclosure of which is restricted by law or by institutional policy. The PI may submit a single written request for reconsideration, with any additional material, within 30 days of the refusal. The Provider will acknowledge that request within 10 working days and give its decision, with reasons recorded, within 30 working days of receipt; the reconsideration is carried out by a reviewer who was not responsible for the original refusal. The Provider's decision on reconsideration is final.

4.3 Automated and AI-assisted checks

Application materials may undergo automated or AI-assisted checks, followed by human preliminary review. Final access authorisation is confirmed by a human reviewer. No decision to refuse access is taken solely on the basis of automated processing, and the PI may request human re-review. Application documents are handled for access administration and related institutional records. Checks may cover completeness, format, identity and account consistency, and the proposed use. Submit readable, structured documents without patient data, passwords, tokens, unrelated confidential information or instructions directed at automated reviewers. The Provider will apply applicable institutional confidentiality and information-handling requirements to the review tools and services used.

4.4 Applicant information

The Provider processes the personal data of applicants (name, public profile, institution, role, institutional email, Hugging Face username and project information) for the purpose of assessing, administering and auditing access to the Dataset, and retains it for no less than 5 years in accordance with applicable law and institutional policy. Applicants may exercise any rights available to them under applicable data protection law by writing to circle_collaborators@zs-hospital.sh.cn.

5. Permitted research activities

Academic topic selection is open within bona fide non-commercial research; the examples below are not an exhaustive list. The Provider does not condition access on the expectation of favourable results. Privacy, lawful

use, institutional safeguards and the excluded uses in Section 16 remain applicable. For the Approved Project, the User may:

a) analyse the Dataset;
b) develop and evaluate non-commercial research methods and models;
c) create Aggregate Statistics, research code and scholarly publications; and
d) create Derived Models for internal use within the Approved Project, subject to Section 9.

6. Prohibited activities

To protect the privacy and dignity of the individuals represented in the Dataset, support responsible research and protect the legitimate interests of the Provider, the User must not:

a) attempt to identify, re-identify, link, locate or contact any individual represented in the Dataset;
b) combine the Dataset with any other data or information for the purpose, or with the reasonably foreseeable effect, of identifying or re-identifying an individual;
c) generate, or attempt to generate, a facial reconstruction, a three-dimensional reconstruction capable of supporting facial recognition, or any synthetic media or deep-fake depicting, or capable of identifying, an individual represented in the Dataset;
d) use any image, report or record contained in the Dataset as, or in, a portrait of an identified or identifiable natural person, or otherwise in a manner that infringes the personality rights of any individual;
e) redistribute, republish, sell, rent, lease, sublicence, transfer or otherwise make available any part of the Dataset to any other individual or organisation;
f) share account credentials, access tokens, downloaded files or any other means of access with a person who has not been separately authorised by the Provider;
g) use the Dataset for any Commercial Use;
h) use the Dataset for direct patient care, diagnosis, triage, prognosis, treatment selection or any other clinical decision;
i) state or imply that a model trained or evaluated using the Dataset is clinically validated, medically approved, authorised by a regulatory authority or fit for clinical use solely by virtue of such training or evaluation;
j) use the Dataset as the sole or sufficient basis for a regulatory submission, medical-device validation or claim of clinical safety or effectiveness;
k) state or imply that this Licence, the DUA or the Provider's grant of access constitutes a regulatory approval, a conformity assessment, a CE marking or a declaration of conformity;
l) publish, publicly display or otherwise disclose patient-level images, complete or substantially complete reports, reconstructed records, potentially identifying information or other patient-level content that may compromise privacy, except as expressly permitted by Section 9;
m) use the Dataset for unlawful discrimination, harassment, stigmatisation, deliberate harm or abuse of individuals or groups; (Special Note: Objective academic research involving sensitive or protected characteristics and carried out in compliance with rigorous ethical requirements is not prohibited solely by reason of its topic or findings);
n) knowingly or recklessly fabricate or falsify results, or knowingly or recklessly misrepresent the Dataset or the Provider. This restriction does not prohibit methodologically supported criticism, assessments of clinical performance, or unfavorable, negative or null academic findings, provided that the publication does not

involve Patient-level disclosures, Reconstruction or any Release without Consent. The User bears the burden of showing that a finding is methodologically supported (See Section 9.4.);

o) upon becoming aware of any information, circumstance or technical issue that may present a risk of identifying or re-identifying an individual, fail to suspend the affected activity and promptly notify the Provider through its designated private reporting channel; or disclose, reproduce, publish or discuss potentially identifying information in a public repository, issue tracker, discussion forum, social-media platform, publication or other public venue instead of reporting the matter privately to the Provider; or

p) use the Dataset in violation of any applicable law or regulation of the People's Republic of China, any applicable law or regulation of the jurisdiction in which the User is located or accesses, stores or uses the Dataset, any applicable ethical approval or institutional policy, or this Licence.

7. Privacy, de-identification and re-identification

The Dataset has been de-identified, but de-identification does not eliminate all privacy risk.

7.1 Legal characterisation

The Dataset is De-identified. It is not Anonymised Information. Under the law of the People's Republic of China, De-identified information remains personal information and remains subject to personal information protection law. Comparable distinctions between de-identification and anonymisation are reflected in the data-protection frameworks of a number of other jurisdictions: under Regulation (EU) 2016/679, for example, the Dataset has not been anonymised within the meaning of Recital 26 and remains personal data. Reference to Regulation (EU) 2016/679 is made by way of illustration only, to indicate that this characterisation is consistent with the approach commonly taken across data-protection regimes; it is not exhaustive of the laws that may be relevant to the User, and other jurisdictions may apply comparable or more stringent standards. This characterisation is without prejudice to Section 19 and does not submit this Licence to any non-PRC governing law. The User must therefore treat the Dataset accordingly and must not represent it as anonymous or anonymised.

7.2 User obligations

The User must apply data-minimisation principles and must not test or claim successful re-identification. If the User inadvertently discovers information that could identify an individual, the User must immediately stop the affected analysis, protect the information from further access and notify the Provider privately in accordance with this Section. For the avoidance of doubt, Section 6(a) does not prohibit controlled privacy and memorisation testing expressly required under Section 9.2, provided that it is conducted in an isolated environment within the Technical Environment, is limited to:

a) stop the affected analysis;

b) not copy, disclose or further investigate the information;

c) protect it from further access; and

d) notify the Provider privately, using the channel in Section 16, without posting the information in a public repository, issue or discussion.

The User must ensure that the User's own institution has a lawful basis, and any required ethics approval, for the User's processing of the Dataset, and must not process the Dataset in a manner that is outside the scope of the basis on which the Provider made it available.

The Provider may, at any time, direct the User to stop using and to delete specific records where required to give effect to a data subject's rights, a regulatory requirement, an ethics requirement or a legal obligation. The User must comply promptly and confirm deletion.

8. Security, environment and incident reporting

The User must protect the Dataset using reasonable institutional, administrative, physical and technical safeguards appropriate for sensitive medical research data. At a minimum, the User must:

a) store the Dataset only on access-controlled systems used for the Approved Project and within the Technical Environment;
b) restrict access to the User and to Authorised Personnel;
c) use encryption in transit and at rest. Where the Approved Institution does not support encryption at rest, the User must apply compensating controls agreed with the Provider in writing and describe them in the access request;
d) not store or process the Dataset on any public storage bucket, publicly accessible server, public cloud computing service, offshore cloud service, or unapproved third-party data-processing or compute service, in each case without the Provider's prior written consent;
e) maintain appropriate account, patching, backup and audit practices, and retain access and processing logs for at least 12 months; and
f) securely delete unnecessary temporary copies.

The security controls set out in this Section 8 are the minimum the Provider expects. The User must notify the Provider immediately on becoming aware of a Security Incident and without undue delay, and in any event within 24 hours, by providing an initial report; must provide a further written report within 72 hours containing what is known of the cause, scope and remediation; must observe any shorter period required by applicable law; and must cooperate in reasonable mitigation steps and in any notification the Provider is required to make to a competent authority, a data subject or an ethics committee.

The security controls set out in this Section 8 are the minimum the Provider expects. The User must notify the Provider promptly, and in any event within 24 hours of becoming aware of a Security Incident, by providing an initial report; must provide a further written report within 72 hours containing what is known of the cause, scope and remediation; and must cooperate in reasonable mitigation steps and in any notification the Provider is required to make.

The User must notify the Provider promptly and in writing of any change to the Technical Environment that affects the confidentiality, integrity or availability of the Dataset.

9. Publications, outputs and derived models

Terms defined in Section 1 (Definitions) have the same meanings in this Section 9. In particular, "Dataset", "Provider", "User", "PI", "DUA", "Authorised Personnel", "Approved Project", "Approved Institution", "Technical Environment", "Derived Model", "Aggregate Statistics", "De-identified", "Anonymised Information", "Security Incident", "Material Change" and "Commercial Use" have the meanings given in Section 1.

For the purposes of this Section 9 only:

a) **Examination** means all images, Reports and associated records relating to a single patient encounter,

whether complete or incomplete.

b) **Report** means any narrative, structured or generated text forming part of the Dataset.

c) **Full Report** means a Report in its entirety.

d) **Patient-level Information** means any Dataset image, Report, Examination, record or identifier relating to an individual, and includes De-identified information. It excludes Anonymised Information. For the avoidance of doubt, an individual is identifiable if they can be identified, singled out or linked, whether alone or in combination with other reasonably available information, including by comparison with publicly available images or by inference from model weights or sample outputs. The expressions "patient-level", "Dataset image or report", "Dataset examination", "examination", "individual" and "identifying information" as used in this Section 9 shall be construed consistently with this definition.

e) **Reconstruction** means any process by which a Dataset image, Report or Examination, or any part thereof sufficient to identify, single out or link an individual or to recover the substance of an Examination, can be recovered, approximated, re-assembled or otherwise inferred, whether or not the result is identical to the original and whether or not identifiers have been removed, including by inference from model weights, from sample outputs, or by comparison with publicly available images.

f) **Release** means to publish, deposit, transfer, distribute, disclose or otherwise make available to any person other than the PI and the Authorised Personnel listed in the DUA, including on a model hub, in a code repository, as a supplementary file, or by way of an API, hosted inference service, demonstration, benchmark or third-party evaluation.

g) **Clinical Purpose** means use in the diagnosis, treatment or management of an individual patient. It does not include research assessing the clinical performance of a model or method on the Dataset.

h) **Consent** means a written consent signed by an authorised representative of the Provider. It is personal to the User, non-transferable, limited to the specific Release and version identified in it, and does not extend to any update, retrained version, fine-tune, adapter or derivative. No Consent may be implied from silence, delay, prior conduct or discussion.

i) **Provider Materials** means the Dataset, all Derived Models and their weights, and all outputs, documentation and test records relating to either of them.

9.1 Aggregate outputs

The User may publish Aggregate Statistics only if they do not contain, reproduce or enable Reconstruction of Patient-level Information.

The User bears the burden of demonstrating compliance with this Section and shall, on the Provider's written request, provide a description of the computation method and the outputs disclosed. The Provider may require the User to withdraw, correct or procure the correction of any published material that does not comply with this Section, and the User shall comply promptly at its own cost.

This Section is subject to Sections 9.2 and 9.3; where an output falls within those Sections, those Sections govern. For the avoidance of doubt, Aggregate Statistics that meet this Section, the User's research code, scholarly publications and illustrative images permitted under Section 9.3 may be published without further approval. Nothing in this Section authorises any Release of Patient-level Information or of Derived Model weights, which require the Provider's prior written consent under Section 9.2.

9.2 Derived Models

The User may create Derived Models for internal use within the Approved Project. Commercial Use of a Derived Model is not authorised by this Licence or the DUA and requires a separate written licence from the Provider.

The public release, publication, deposit or transfer of Derived Model weights, checkpoints, adapters or parameters — including release on a model hub, in a code repository, or as a supplementary file — requires the Provider's prior written consent, which the Provider may grant, refuse or condition in its discretion. Before any such release the User must:

a) conduct and document privacy and memorisation testing appropriate to the model and use case, which must address at least membership inference and training-data extraction, and provide the Provider with a summary of the method and results;
b) confirm in writing that, to the best of the User's knowledge after that testing, the weights cannot be used to reconstruct a Dataset image or report, or to reconstruct a Dataset examination; and
c) state, in the model card or equivalent documentation, that the model was trained on CIRCLE-ZS20K under this Licence for non-commercial research, that it is not clinically validated, and that it must not be used for clinical, commercial or regulatory purposes.

The User must not release sample outputs that reproduce a full Dataset report or allow a Dataset examination to be reconstructed. The Provider may request information reasonably necessary to assess a suspected privacy or licence violation, and may withdraw consent for a release that has not yet occurred.

9.3 Illustrative images in scholarly publications

Notwithstanding Section 6, and without limiting Sections 9.1 and 9.2, the User may include in a scholarly publication or its supplementary material a limited number of illustrative images, provided that the User:

(a) removes all DICOM metadata and all burned-in or overlaid annotations and identifiers from each image;

(b) documents an assessment that the images do not permit identification of an individual, including by facial recognition or by comparison with publicly available images, and do not, individually or in aggregate, constitute or permit Reconstruction of an Examination or Report; and provides that assessment to the Provider on reasonable request;

(c) where the User is uncertain as to (a) or (b), consults the Provider before publication and does not publish the images in that form unless the Provider confirms in writing that it has no privacy objection.

The Provider may require the User to replace, mask, reduce or withdraw any image, or to remove it from supplementary material, where the Provider considers on reasonable grounds that the image does not comply with this Section. The User shall not deposit the images in a searchable or bulk-downloadable repository.

A consultation or confirmation under this Section concerns the images only and is not a review or approval of the manuscript or its conclusions.

9.4 Academic freedom

The Provider does not review or approve the academic conclusions, methodology or interpretation of the User's research and does not require co-authorship. No pre-publication manuscript review or approval is required, and manuscripts (including supplementary material) do not have to be submitted to the Provider before publication, provided that the User complies with Sections 9.1 to 9.3 and 9.5 in respect of all outputs and disclosures.

This section does not give the Provider ownership of the User's original research code, Aggregate Statistics or independently created intellectual property. For the avoidance of doubt, the Provider retains all rights and controls in the Dataset and in Provider Materials, and no right in respect of any Derived Model or its weights is granted to the User other than the limited internal use expressly permitted by Section 9.2.

Academic topics are not restricted. Subject to the foregoing and to Section 6(n), methodologically supported unfavorable, negative or null academic findings, criticism and assessments of clinical performance may be published. The User bears the burden of showing that a finding is methodologically supported. Ordinary citation requirements do not confer authorship; a statement required under Section 9.2(c) is a licence notice and not a citation. Patient-level disclosures and Reconstruction remain prohibited.

Requests regarding Derived Model weights concern privacy and licensing permissions, not approval of a manuscript or its academic conclusions.

9.5 Provider's continuing rights

The Provider may at any time require the User to provide information, records or Provider Materials reasonably necessary to assess compliance with this Section 9, and the User shall comply within 15 working days. The Provider may also exercise its rights under this Section following a Security Incident or a Material Change (as defined in Section 1).

Where the Provider has reasonable grounds to consider that a disclosure breaches Section 9, it may require the User to take such remedial steps as are reasonably practicable, including withdrawal, removal, correction or retraction of any publication, deposit, supplementary material, model card or other disclosure. The Provider will state those grounds in writing and give the User at least 10 working days to respond, except where immediate action is required to protect individuals, in which case the Provider may require temporary removal pending review. A request for academic retraction of a published paper is without prejudice to Section 9.4. The User shall comply promptly at its own cost.

The User acknowledges that a breach of this Section 9 may cause damage that is difficult to remedy by monetary compensation alone, and that the Provider may apply to a court of competent jurisdiction for behaviour preservation and other interim relief under the Civil Procedure Law of the People's Republic of China.

No failure or delay by the Provider in exercising any right under this Section 9 operates as a waiver. This Section 9 survives termination or expiry of this Licence and the DUA.

10. Attribution

Publications, presentations and other public research outputs using the Dataset must:

a) cite the associated CIRCLE article when its citation becomes available, and in the meantime cite the Dataset using the recommended citation published on the dataset card;
b) identify the Dataset as CIRCLE-ZS20K;
c) include the repository URL and the version or commit used; and
d) state that access was granted for non-commercial research under this Licence, and identify the version of this Licence.

Attribution does not imply that the Provider endorses the User, the Approved Project, its findings or any derived product.

11. No redistribution

The User may not distribute the Dataset or any patient-level subset, transformed copy, translation, embedding intended to preserve patient-level content, reconstructed content or substantially equivalent replacement for the Dataset.

This restriction does not prohibit publication of Aggregate Statistics that do not enable reconstruction or re-identification. When reproducibility requires access to the original data, other researchers must request access directly from the Provider.

12. Review, suspension and termination

1) The Provider may deny, suspend or revoke access when reasonably necessary to protect participants, comply with legal or institutional requirements, orders of the competent national authority, respond to a security concern, correct inaccurate application information or address a suspected breach of this Licence. The User may request reconsideration of a suspension or revocation in accordance with Section 4.2, mutatis mutandis.
2) Except where the Provider considers that immediate action is required, including where there is a risk to participants, an ongoing Security Incident, or a suspected deliberate breach, the Provider will give the User notice and a period of 10 working days to remedy the matter before suspending or revoking access.
3) The permission granted by this Licence ends when:
    a) the Approved Project ends;
    b) the User leaves the Approved Institution or project;
    c) the User no longer complies with this Licence;
    d) the Provider revokes access; or
    e) the User chooses to discontinue use.
4) Upon termination or written request from the Provider, the User must stop using the Dataset and securely delete all copies under the User's control, including downloads, backups, caches, extracts, intermediate files, access and processing logs containing patient-level Dataset content, except for records that must be retained by law or binding institutional policy. The User must, within 30 days, provide the Provider with a written certificate of deletion signed by the PI, identifying what has been deleted and what is retained and why. Any retained record remains subject to this Licence and may not be used for further research.
5) Sections 1, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, and 19 of the Licence, together with any other provision that by its nature is intended to survive, survive termination to the extent applicable.

13. Compliance verification

1) The Provider may, on reasonable notice and no more than once in any 12-month period unless it has a reasonable concern, require the User to provide a written statement of compliance with this Licence and the DUA, together with such information as is reasonably necessary to verify it, including a description of the Technical Environment, the current list of Authorised Personnel, and access and processing logs. The User must respond within 30 days.

2) Where the Provider has a reasonable concern that this Licence or the DUA has been breached, or that there is a risk to the individuals represented in the Dataset, the Provider may request information without the notice and frequency limits in this section and may suspend access pending verification.

14. No warranties and research-use limitation

1) The Dataset is provided "as is" and "as available" for research purposes. To the maximum extent permitted by applicable law, the Provider disclaims warranties of accuracy, completeness, merchantability, fitness for a particular purpose, non-infringement and uninterrupted availability.
2) The Dataset may contain errors, omissions, reporting variability, label noise and incomplete clinical information. The Provider does not warrant that use of the Dataset will produce valid, reproducible, safe or clinically effective results.

15. Responsibility, liability and indemnity

1) The User is responsible for the design, ethical approval, conduct, interpretation and publication of the Approved Project and for compliance with applicable law and institutional requirements.
2) To the maximum extent permitted by applicable law, the Provider is not liable for any loss or damage of any kind, whether direct, indirect, incidental, special, consequential, punitive or exemplary loss, or for loss of profit, revenue, goodwill, data or anticipated savings, arising from access to or use of the Dataset.
3) Nothing in this Licence excludes or limits liability that cannot lawfully be excluded or limited, including liability for intentional misconduct or gross negligence, for fraud or fraudulent misrepresentation, and for death or personal injury caused by negligence. Nothing in this Licence limits any right of a data subject under applicable law.
4) The User must indemnify the Provider, its institution and its dataset maintainers against losses, damages and liabilities, including administrative fines, reasonable legal fees, court fees, arbitration fees, preservation fees, preservation guarantee fees and other costs of rights enforcement arising out of: (a) the User's breach of this Licence or the DUA; (b) the User's unlawful processing of the Dataset; (c) any act or omission of the User's Authorised Personnel in breach of this Licence or in violation of applicable law; (d) any claim brought by a third party, including a data subject, in respect of the User's use of the Dataset; or (e) any other disputes arising out of or in connection with the access to or use of the Dataset.

16. Excluded uses, contacts and scope questions

1) This Licence and the DUA authorise only non-commercial academic research. Commercial Use, patient-facing clinical translation or deployment, regulatory submissions, and the higher-risk uses defined below are not allowed under these agreements. Completing the access procedure or obtaining repository access does not authorise an excluded use. Neither this Licence nor the DUA provides an additional-permissions approval route for those uses.
2) Higher-risk uses include linkage to external individual-level data, inference of sensitive individual attributes, or other activities that materially increase the risk of identifying an individual or compromising privacy or safety. Such activities are excluded even if described as academic research. Where the scope is uncertain, the PI should contact the Provider before proceeding; a scope enquiry is not permission to conduct an excluded activity.

3) Routine non-commercial academic external validation and cross-cohort performance evaluation within the Approved Project remain permitted when they comply with this Licence. An external cohort alone does not constitute an excluded higher-risk use. Material project changes remain subject to Section 3. Permission for release or transfer of Derived Model weights, where available under Section 9.2, does not authorise commercial, patient-facing clinical or excluded higher-risk activities.
4) Access, licensing and privacy correspondence must be sent by the PI from the same institutional email to circle_collaborators@zs-hospital.sh.cn. For an overdue response, contact zeng.mengsu@zs-hospital.sh.cn.
5) The Provider maintains a private reporting channel at circle_collaborators@zs-hospital.sh.cn. Reports of potential re-identification, Security Incidents and other privacy concerns must be sent privately to that channel. If any identifier, trace or other sign that could identify or re-identify a person is found, the User must stop the affected activity and must report it privately without publicly posting the material. Patient information, access credentials and confidential application details must not be posted in public.
6) We warmly welcome academic colleagues to use CIRCLE-ZS20K for responsible academic research. We hope it will support reproducibility, new ideas and the wider research and open-source communities. A verifiable PI institutional email provides a reliable point of institutional accountability and helps us place the data in trusted hands. Hospital oversight and applicable law guide the safeguards. If hospital requirements change, we may adapt the review method and will publish material changes, their effective dates and applicable timelines in advance.

17. General provisions

1) **Entire agreement.** This Licence and the completed DUA together state the conditions for use of the Dataset and supersede any prior understanding on their subject matter, subject to Section 18.
2) **Severability.** If any provision of this Licence or the DUA is held to be invalid, illegal or unenforceable, that provision must be modified to the minimum extent necessary to make it enforceable, or if modification is not possible, severed. The remainder of this Licence and the DUA continues in force.
3) **No waiver.** A failure or delay by the Provider in exercising any right under this Licence or the DUA is not a waiver of that right. A waiver is effective only if given in writing.
4) **Assignment.** The User must not assign, transfer, delegate or otherwise dispose of any right or obligation under this Licence or the DUA. The Provider may assign its rights to a successor in relation to the Dataset.
5) **Amendment.** Any amendment to this Licence or the DUA must be in writing and, in the case of the DUA, signed by both parties. The Provider may publish prospective changes to this Licence in accordance with Section 18.
6) **Notices.** Notices under this Licence or the DUA must be in writing and sent to the email addresses in Section 16 or, in the case of a notice to the User, to the PI's verified institutional email. A notice is treated as given to the Provider in Shanghai on the next working day after it is sent, unless a failure notice is received. The PI must keep the Provider informed of any change of institutional email; until the Provider has accepted a change in writing, the previous address remains valid.
7) **Signature.** This DUA may be signed only by handwritten signature. A complete, legible and unaltered scanned copy of the signed DUA is accepted as a valid duplicate where it is covered by a **Standing Confirmation** under the DUA or otherwise confirmed in writing by the other party. Each party shall retain the original signed DUA. For the avoidance of doubt, "unaltered" means that the copy reproduces the entire signed document, including all pages, attachments and the final acceptance page, without any page

substitution, addition, deletion, cropping, masking, annotation, watermark, image editing or re-export that changes its content or appearance. A Standing Confirmation means a written confirmation given in advance by a party (the "Confirming Party") that it confirms in advance, and accepts as satisfying the relevant "in writing" or "written" requirement without a separate document-by-document confirmation, each complete and legible scanned copy of a document bearing a handwritten signature that: (i) is transmitted by the other party from that party's institutional email address; (ii) is identified by the application reference number and the document to which it relates; and (iii) constitutes a notice, approval, consent, acceptance, certificate or other communication required to be in writing under this DUA. A Standing Confirmation takes effect when the application reference number is issued and is thereby bound to that application. It applies only to the PI, the Approved Institution and the Approved Project named in that application, and continues until the end of the Project Period or until withdrawn in writing by the Confirming Party, whichever is earlier. It lapses automatically on any change to the PI, the Approved Institution or the Approved Project, and does not extend to any new application, to any new Authorised Personnel, or to any material change for which a separate written acceptance is required. An email that merely transmits a scanned copy does not constitute a Standing Confirmation, nor does it extend an existing Standing Confirmation to a document that fails any of (i) to (iii).

8) **No third-party beneficiaries.** Nothing in this Licence or the DUA shall confer any right or remedy on any third party. Only the parties hereto, Authorised Personnel, and the Provider may enforce this Licence and the DUA. This does not limit any right of a data subject under applicable law.
9) **No partnership.** Nothing in this Licence or the DUA creates a partnership, joint venture, agency or employment relationship between the parties.
10) **Force majeure.** Neither party is liable for any failure to perform its obligations hereunder arising from an objective event that is unforeseeable, unavoidable and insurmountable, provided that the affected party notifies the other party and takes reasonable steps to resume performance. This does not excuse a failure to protect the Dataset, or any obligation of confidentiality, security or deletion.
11) **Platform.** Hugging Face and any other repository or platform through which the Dataset is distributed act only as technical distributors and are not parties to this Licence or the DUA. The Provider may grant, refuse, suspend or withdraw access through the mechanisms of that platform, and the platform's own terms apply to the use of its service. Those terms govern only platform services and do not expand the scope of dataset use granted hereunder; in the event of a conflict as to the permitted use of the Dataset, this Licence and the DUA prevail between the parties.

18. Entire terms and changes

1) The completed DUA and this Licence are to be read together. If the completed DUA conflicts with this Licence, the DUA controls for that User and Approved Project, except that nothing in the DUA excludes or limits liability that cannot lawfully be excluded or limited, and except for Sections 6, 7, 9, 16 and 18, which prevail over any inconsistent term of the DUA.
2) The Provider may publish prospective changes to these terms for future access or use. The repository's version history identifies the applicable published version. The Provider will give at least 15 working days' notice of a material change by an announcement on the repository and, where reasonably practicable, by email to approved PIs. Continued use after notice of a material change may require renewed acceptance. Where a material change is to apply to an existing Approved Project, it takes effect only if the PI accepts it

in writing; if the PI does not accept it, the Provider may end the permission on reasonable notice and Section 12 applies. Where hospital requirements change, the Provider may adapt the review method and will publish material changes, their effective dates and applicable timelines in advance. Where the Provider updates, corrects or partially withdraws the Dataset, the User must, on notice, stop using the superseded material, update or delete it, and confirm compliance.

19. Governing Law

This Licence and the DUA are governed by and construed in accordance with the laws of the People's Republic of China. Any dispute arising out of or in connection with the performance or interpretation of this Licence or the DUA shall be submitted to the competent courts in Shanghai for adjudication. Nothing in this Section excludes mandatory data-protection or research-ethics rules of the jurisdiction in which the User is located.

---------- *End of Licence* (Version 20261110) ----------